

Risk Neutral

Fee rule	P shortfall	D nonliable	D excess	Gross error	Real costs
Trial-only fee shifting	0.213	0.175	0.047	0.273	0.236

Risk Averse

Fee rule	P shortfall	D nonliable	D excess	Gross error	Real costs
Trial-only fee shifting	0.196	0.184	0.014	0.280	0.175